LEGAL TESTAMENTARY INSTRUMENT

GOVERNED BY THE INDIAN SUCCESSION ACT, 1925 & HINDU SUCCESSION ACT, 1956

LAST WILL AND TESTAMENT

(Formal Testamentary Disposition under Indian Succession Law)

I, **RAMESH SHARMA**, son of Late Shri Kailash Sharma [Identity Document: PAN Card Ending in XXXX-521M], residing at **Flat 402, Sai Balaji Residency, Madhapur, Hyderabad, Telangana, PIN: 500081**, born on **15/08/1976**, professing **Hindu** faith, being of sound disposing mind, memory, and understanding, having read over and fully understood the contents hereof in a language known to me and having approved the same, and acting of my own free choice, volition, and without any coercion, undue influence, fraud, or misrepresentation from any person whatsoever, do hereby make, publish, and declare this writing to be my **Last Will and Testament**, executed at **Hyderabad**, India.

SECTION I REVOCATION OF ALL FORMER WILLS & CODICILS

I hereby revoke, cancel, and annul all prior Wills, Codicils, Testaments, and testamentary dispositions of every nature whatsoever made by me at any time heretofore, and declare this to be my sole, exclusive, and operative Last Will and Testament.

SECTION II DECLARATION OF SOUND HEALTH AND TESTAMENTARY CAPACITY

I hereby declare that I am executing this Will in sound disposing mental faculties, memory, and understanding. I fully comprehend and appreciate the nature, extent, and value of all my movable and immovable properties, and the natural claims of those persons who are the objects of my affection and bounty.

SECTION III DECLARATION OF ABSOLUTE SELF-ACQUIRED PROPERTIES & TITLE

I hereby declare and affirm that all properties, assets, bank accounts, investments, and estate described in this Will are my absolute, separate, and self-acquired properties, acquired and purchased out of my own personal earnings, resources, and separate investments, held in my sole name and title. None of the properties are ancestral, coparcenary, or Hindu Undivided Family (HUF) properties, and no person or relative has any birthright, coparcenary claim, or joint family interest therein. Pursuant to Section 30 of the Hindu Succession Act, 1956 and the Indian Succession Act, 1925, I hold full, absolute, and unfettered testamentary power to bequeath and dispose of the same according to my sole wishes.

SECTION IV APPOINTMENT & OPERATIONAL POWERS OF EXECUTOR

I hereby nominate, constitute, and appoint **Suresh Sharma (Brother), S/o Late Shri Kailash Sharma, aged about 52 years, residing at Flat 201, Srinivasa Towers, Street No. 3, Habsiguda, Hyderabad, Telangana 500007** as the sole Executor of this my Last Will and Testament. In the event that **Suresh Sharma** is unable, unwilling, or predeceases me, I hereby nominate and appoint **Rajesh Kumar (Close Friend / Advisor), S/o Shri R.P. Kumar, aged about 49 years, residing at House No. 12-5-84/2, Vijayapuri Colony, Tarnaka, Secunderabad, Telangana 500017** as the Alternate Executor of this Will with identical powers and duties.

I expressly confer upon my Executor full administrative powers to:

• **(a) Possession & Custody:** Take custody, charge, and possession of all my movable and immovable assets, title deeds, bank accounts, and lockers;

• **(b) Representation & Mutation:** Represent my estate before all Banks, Depository Participants, Asset Management Companies, Sub-Registrars, Housing Societies, and Revenue Authorities, and execute all necessary transfer deeds, mutation applications, discharges, and conveyance instruments;

• **(c) Statutory Debt Settlement Priority:** Discharge and pay all legitimate liabilities, funeral costs, and administrative charges strictly in the statutory order of priority mandated by the Indian Succession Act, 1925: first, funeral and death-bed expenses (Section 320); second, expenses of obtaining probate and administering the estate (Section 321); third, wages due for services rendered within three months preceding my demise to any labourer, artisan, or domestic servant (Section 322); fourth, all other enforceable debts and liabilities paid rateably according to their applicable legal priorities (Section 323); and pursuant to Section 325, all such enforceable debts and liabilities shall be paid prior to the payment or distribution of any legacy or bequest under this Will, payable first out of the residuary estate or available unencumbered liquid funds, with the legal rights of secured creditors preserved;

• **(d) Statutory Tax Obligations:** Comply with all applicable income-tax and other statutory tax laws (including under the Income-tax Act, 2025 in force from 1 April 2026), prepare and file my final Income Tax Returns (ITR), discharge all outstanding and applicable tax liabilities and tax-compliance obligations of the deceased and estate arising from or in connection with the administration of this estate (including capital gains arising from estate transactions);

• **(e) Realisation & Conveyances:** Execute all formal conveyances and transfer instruments to vest title in the designated beneficiaries in accordance with this Will; distribute securities in kind where practicable, or sell and realise non-divisible fractional share and securities holdings at fair market value and distribute the net proceeds in the specified proportions (34:33:33); and realise, sell, or lease assets strictly where necessary to discharge enforceable estate debts or statutory liabilities; provided that, notwithstanding the foregoing general restriction, the Executor shall have express authority and is hereby directed to realise and liquidate the entire net estate including immovable property to the full extent required by the Ultimate Charitable Fallback provision of this Will (Section 307, Indian Succession Act, 1925);

• **(f) Compromise of Claims:** Compound, compromise, abandon, or submit to arbitration all debts, claims, or accounts relating to my estate, and appoint legal advocates or attorneys for any of the aforesaid purposes; provided that the executor acts honestly and prudently in the best interests of the estate, maintains proper written records, and does not compromise or abandon substantial claims without recorded reasons;

• **(g) Expense Reimbursement:** Be reimbursed from the estate for all actual and reasonable out-of-pocket legal, travel, and administrative expenses properly incurred in the discharge of duties, without personal profit or remuneration;

• **(h) Encumbrance Liability:** Any specific property bequeathed subject to an existing mortgage, charge, or loan shall pass to the respective beneficiary subject to such liability in proportion to their shares, without personal recourse against other beneficiaries, unless covered and discharged by an active loan-protection or mortgage-redemption insurance policy;

• **(i) Court Authority & Probate:** Apply for Probate of this Will before a Court of competent jurisdiction if deemed necessary or required by any institution (or, in the event that no named Executor is able or willing to act, for any beneficiary to apply for Letters of Administration with the Will annexed).

SECTION V SCHEDULE OF BEQUEST OF ASSETS & BENEFICIARY ALLOCATIONS

I hereby bequeath, devise, and distribute all my specified movable and immovable assets to the designated beneficiaries in the exact proportions set forth below:

Asset #1 [Bank Account / FD]: State Bank of India (SBI) Savings Account ending in 4521, Hitec City, Hyderabad (Savings A/c No. ending in 4521, along with all fixed deposits standing in my sole name with SBI, or any renewed/successor accounts) (Approx Value: ₹35,00,000)

- **34% Absolute Share** Bequeathed to **Sunita Sharma (Spouse)** [Aadhaar Card: Ending in XXXX-9182]
- **33% Absolute Share** Bequeathed to **Aarav Sharma (Son)** [PAN Card: Ending in XXXX-812B]
- **33% Absolute Share** Bequeathed to **Ananya Sharma (Daughter)** [Aadhaar Card: Ending in XXXX-4567]

Asset #2 [Property / Land]: Residential Flat / Apartment (Flat 402, 4th Floor, Sai Balaji Residency, Madhapur, Super Built-up Area: 1,450 sq ft (UDS: 42 sq yds), Regd. Sale Deed No. 4521/2018 dated 14/06/2018 at SRO Serilingampally, Bounded N: Open Driveway, S: Flat 401, E: Corridor, W: Compound Wall, Hyderabad) (Approx Value: ₹1,20,00,000)

LIFELONG RESIDENTIAL PROTECTION FOR SPOUSE (SUNITA SHARMA):

The bequests of the undivided 33% shares to my son Aarav Sharma and my daughter Ananya Sharma are expressly made subject to, encumbered by, and subordinate to the prior, irrevocable **PERSONAL LIFE RIGHT OF RESIDENCE AND OCCUPATION** hereby granted in favor of my spouse, **SUNITA SHARMA**, in the whole of the said residential flat for her natural lifetime:

• **(i) Undisturbed Possession:** Sunita Sharma shall have the peaceful, undisturbed right to reside in, occupy, and use the said residential flat along with such family members as she desires during her natural lifetime, free from any eviction, interference, or demand for occupational charges or rent by the co-owners or any person claiming under them.

• **(ii) Protection of Possession & Alienation Subject to Life Right:** During the lifetime of Sunita Sharma, neither Aarav Sharma nor Ananya Sharma shall be entitled to seek physical partition, separate possession, or division of the flat. Any sale, mortgage, or transfer of an undivided share by any co-owner shall be strictly subject to, encumbered by, and subordinate to Sunita Sharma's lifelong residence right.

• **(iii) Outgoings & Domestic Utilities:** Routine domestic utility bills (electricity, water, gas, internet) shall be borne directly by the occupant; routine society maintenance charges and municipal property taxes shall be paid out of my residuary estate during the first three (3) years following my demise (provided that if the residuary estate is exhausted before the expiry of that three-year period, the co-owners shall contribute such charges proportionately in the ratio 34:33:33 from the date of exhaustion), and thereafter permanently shared by the co-owners in proportion to their ownership shares (34:33:33); while major structural and capital repairs shall be borne by the co-owners in proportion to their shares (34% by Sunita, 33% by Aarav, 33% by Ananya).

• **(iv) Voluntary Sale & Substitute Accommodation Guarantee:** In the event that the flat is sold during her lifetime with Sunita Sharma's express prior written consent, the net sale proceeds shall be applied first and foremost to acquire a substitute residential flat of equivalent or better standard (defined as: located within the same city, of comparable or greater carpet area, in a structurally sound residential building with comparable amenities and accessibility, and valued at not less than the proportionate fair market value of Sunita Sharma's share in the sold flat) in which Sunita Sharma shall hold an identical lifelong right of residence, with remainder ownership vested in the co-owners in the proportions 34:33:33, and only the surplus sale proceeds, if any, shall be distributed among the co-owners in proportion to their shares; provided that Sunita Sharma may, by express registered deed, waive this residential requirement in exchange for an agreed financial provision.

• **(v) Vesting of Remainder Interest (Section 119 ISA):** The remainder ownership shares of Aarav Sharma and Ananya Sharma vest immediately upon my demise under Section 119 of the Indian Succession Act, 1925, but their right to physical partition or separate unencumbered possession is postponed until the demise of Sunita Sharma or her voluntary surrender of her residence right by registered deed. If either child predeceases Sunita after surviving me by thirty (30) consecutive calendar days, their vested remainder interest shall devolve upon their surviving lineal descendants per stirpes (to the absolute exclusion of spouses and collateral heirs). In the event that such deceased child leaves no surviving lineal descendants, their vested remainder share shall pass exclusively to the surviving sibling of such deceased child (i.e., the other child named under this Will), or if the surviving sibling has also predeceased, to the surviving sibling's own lineal descendants per stirpes. Spouses and collateral heirs of the deceased child are expressly excluded from any benefit under this clause in all circumstances.

• **(vi) Predecease Contingency:** If my spouse Sunita Sharma predeceases me or does not survive me by thirty (30) days, this personal life right of residence shall never arise, and the undivided shares of the children shall vest and be enjoyed immediately and unencumbered.

- **34% Undivided Share (With Lifelong Personal Right of Residence)** Bequeathed to **Sunita Sharma (Spouse)** [Aadhaar Card: Ending in XXXX-9182]
- **33% Undivided Share (Subject to Prior Life Right of Residence)** Bequeathed to **Aarav Sharma (Son)** [PAN Card: Ending in XXXX-812B]
- **33% Undivided Share (Subject to Prior Life Right of Residence)** Bequeathed to **Ananya Sharma (Daughter)** [Aadhaar Card: Ending in XXXX-4567]

Asset #3 [Mutual Funds / Stocks]: Zerodha Broking Ltd (CDSL DP ID: 12081600) Investment Holding (Account/Client: BO ID: 12081600-04521892 (Trading Client Code: ZR4521, covering all equity shares, ETF units, and mutual fund folios)) (Approx Value: ₹45,00,000)

- **34% Absolute Share** Bequeathed to **Sunita Sharma (Spouse)** [Aadhaar Card: Ending in XXXX-9182]
- **33% Absolute Share** Bequeathed to **Aarav Sharma (Son)** [PAN Card: Ending in XXXX-812B]
- **33% Absolute Share** Bequeathed to **Ananya Sharma (Daughter)** [Aadhaar Card: Ending in XXXX-4567]

SURVIVORSHIP & ANTI-LAPSE CLAUSE (30-DAY RULE):
If any named beneficiary predeceases me, or fails to survive me by a period of thirty (30) clear consecutive calendar days following my demise, the share bequeathed to such deceased beneficiary (including any share in the residuary estate) shall not lapse, but shall devolve per stirpes by representation across successive generations: that is, equally among their surviving children, with the surviving lineal descendants of any deceased child taking that deceased child's share by representation, provided that such substitute descendants also survive me by thirty (30) consecutive calendar days. In the event that a deceased beneficiary leaves no surviving lineal descendants who survive me by thirty (30) days, their share shall be divided equally among the remaining surviving named beneficiaries of this Will.

ULTIMATE CHARITABLE FALLBACK (PREVENTION OF INTESTACY):
If, upon application of all preceding survivorship, substitution, and anti-lapse provisions, no named beneficiary or qualifying lineal descendant survives the Testator by thirty (30) consecutive calendar days, then my Executor is directed to realise my entire net estate (including selling immovable property at prevailing market rates and closing all accounts) and, after discharge of all enforceable debts, taxes, and testamentary expenses, pay over the net proceeds to the **PRIME MINISTER'S NATIONAL RELIEF FUND (PMNRF)**, Government of India (administered by the Prime Minister's Office, South Block, New Delhi), for charitable public relief purposes. In the event that PMNRF is unable to accept the bequest or has ceased to exist, the net proceeds shall be paid to the **PM CARES FUND** (Prime Minister's Citizen Assistance and Relief in Emergency Situations Fund), New Delhi, as named alternative charitable recipient; in the further event of their unavailability, to the **INDIAN RED CROSS SOCIETY (National Headquarters, New Delhi)**; and failing which, to be paid to the HelpAge India registered national charitable trust (Registered Office: C-14, Qutab Institutional Area, New Delhi 110016) for the relief of poverty, education, and eldercare; and failing which, to such other registered public charitable trust or institution as my Executor, acting honestly and with recorded reasons, shall select in consultation with a High Court of competent jurisdiction, in each case to the absolute exclusion of any intestate succession.

TESTAMENTARY TRUST & MINORITY PROTECTION:
Where any beneficiary's entitlement under this Will vests or becomes distributable while such beneficiary is below eighteen (18) years of age, the relevant property and shares shall be held and administered under this testamentary trust until the beneficiary attains majority:

• **(a) Appointment of Testamentary Trustee:** Their share shall be held in trust by my spouse, **SUNITA SHARMA**, as Primary Testamentary Trustee (and Natural Guardian strictly in respect of her own minor children under Section 6 of the Hindu Minority and Guardianship Act, 1956).

• **(b) Successor Trustees:** In the event that Sunita Sharma predeceases me, dies during the administration of the trust, resigns, or becomes incapable of acting, my brother **SURESH SHARMA** shall act as Substitute Testamentary Trustee; and failing him, a Trustee appointed by a Court of competent jurisdiction under the Indian Trusts Act, 1882 shall act as Successor Trustee.

• **(c) Administration & Statutory Protection:** The Trustee shall hold and administer the minor's property without remuneration, keeping separate trust bank accounts and annual books of account. The Trustee shall have power: (i) to invest liquid funds prudently in scheduled bank fixed deposits or central/state government securities; (ii) in respect of any undivided share in immovable property or securities, to hold, manage, and vote such share and receive rental or dividend income, provided that all dealings with a minor's immovable property shall strictly comply with applicable law and required court permissions under Section 8 of the Hindu Minority and Guardianship Act, 1956; and (iii) to apply the net income and, if strictly necessary for the minor's benefit, reasonable portions of the corpus exclusively for the minor's education, healthcare, maintenance, and welfare.

• **(d) Termination & Vesting at Majority:** Upon the minor attaining the age of eighteen (18) years, the entire remaining trust property, together with all accumulated income and interest (less documented minor-related expenses), shall be transferred and delivered to such beneficiary absolutely.

SECTION VI NOMINATION DIRECTIVE & BENEFICIAL OWNERSHIP

Any nomination registered in respect of my bank accounts, Fixed Deposits, Demat accounts, shares, mutual funds, or other financial assets shall operate in accordance with the applicable legislation governing that asset. Where the law treats a nominee as a recipient for transmission or discharge purposes without conferring beneficial ownership, the beneficial entitlement shall be determined strictly in accordance with this Will and applicable succession law, and any nominee receiving such assets shall hold them as trustee and custodian for the beneficial legatees designated herein. Nothing in this Will shall override any beneficial entitlement expressly conferred upon a nominee by applicable statute, including Section 39(7) of the Insurance Act, 1938.

SECTION VII RESIDUARY ESTATE CLAUSE

Any other real, personal, movable, or immovable property, bank accounts, investments, jewellery, digital assets, vehicles, insurance proceeds, or claims whatsoever belonging to me at the time of my death not specifically mentioned herein shall be divided equally among my designated beneficiaries: **Sunita Sharma** (Spouse), **Aarav Sharma** (Son), **Ananya Sharma** (Daughter), subject to the anti-lapse provision above.

SECTION VIII EXCLUSION OF UNINTENDED HEIRS & THIRD PARTIES

Having carefully considered and provided for my beloved family in accordance with my judgment, I hereby declare that no other relative, heir, or third party shall have any claim, title, or interest whatsoever in my estate save as expressly bequeathed under this Will, to the maximum extent permitted by law.

EXECUTION IN WITNESS WHEREOF

I, the said **Ramesh Sharma**, having understood and approved this Will, have hereunto set my hand and affixed my signature to this my Last Will and Testament on this _____ (Date to be handwritten in ink at time of signing) at **Hyderabad**, India.

_____

Signature / Mark of Testator

Name: Ramesh Sharma

LEFT THUMB IMPRESSION (LTI)

(Affix in indelible ink)

ATTESTATION ATTESTATION BY TWO INDEPENDENT WITNESSES

Signed, acknowledged, published, and declared by the Testator as and for his Last Will and Testament, in the presence of us, who at his request, in his presence, and in the presence of each other, all being present at the same time, have subscribed our names as attesting witnesses. Each of us confirms that we witnessed the Testator sign this Will, or personally received his acknowledgment of his signature, and that we have each subscribed our signatures in the Testator's presence. We affirm that we are of legal age (18+ years), of sound mind, and each of us confirms that we are NEITHER beneficiaries under this Will NOR the spouses of any beneficiary.

WITNESS 1

Signature: _____

Full Name: _____

Father's / Spouse's Name: _____

Permanent Address: _____

Phone / Aadhaar / PAN: _____

Date: _____

WITNESS 2

Signature: _____

Full Name: _____

Father's / Spouse's Name: _____

Permanent Address: _____

Phone / Aadhaar / PAN: _____

Date: _____

—— END OF TESTAMENTARY INSTRUMENT ——